



CHAPTER li.

An Act to empower the mayor aldermen and councillors of the metropolitan borough of Hackney to acquire lands for the extension of their town hall to amend the provisions relating to the granting of superannuation allowances to their officers and servants and for other purposes. A.D. 1931.
[8th July 1931.]

WHEREAS the borough of Hackney in the administrative county of London (hereinafter referred to as "the borough") is a metropolitan borough constituted under the London Government Act 1899 and is under the management and control of the mayor aldermen and councillors of the borough (hereinafter referred to as "the Council"):

And whereas it is expedient to empower the Council to purchase the lands and to carry out the street works referred to in this Act for and in connection with the extension of their town hall:

And whereas provision has been made for the granting of superannuation and other allowances to the officers and servants of the Council by the Camberwell and other Metropolitan Borough Councils (Superannuation) Act 1908 as amended by section 65 of the Hackney Borough Council Act 1926 and section 49 of the London County Council (General Powers) Act 1929 and it is expedient that a new scheme should be established as regards newly

A.D. 1931. appointed officers and servants and that the provisions
— of the existing scheme should be amended :

And whereas for many years past the Council by agreement with the incumbent and churchwardens of the parish of Saint John at Hackney have maintained as an open space certain parts of the churchyard of Saint John at Hackney on the east side of Mare Street within the borough on which a disused church tower stands and on account of its historic and architectural interest the said incumbent and churchwardens now desire to transfer the said tower to the Council and it is expedient that the tower should be vested in the Council and maintained and repaired by the Council by and under this Act :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Council for the purposes hereinafter mentioned and such estimates are as follows :—

	£
For the purchase of lands - - -	49,700
For and in connection with the construction of the street works authorised by this Act - - -	5,400
For and in connection with the laying-out of land for and the construction of the extension of the town hall authorised by this Act - - -	100,500

And whereas the works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

And whereas plans and sections showing the lines and levels of the street works authorised by this Act and plans showing the lands required or which may be taken or used compulsorily for the purposes or under the powers of this Act and the said disused church tower and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of

the occupiers of the lands were duly deposited with the clerk of the London County Council and such plans sections and book of reference are respectively referred to as the deposited plans sections and book of reference : A.D. 1931.
—

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Hackney Borough Council Act 1931. Short title.

2. This Act is divided into Parts as follows :—

Division of
Act into
Parts.

Part I.—Preliminary.

Part II.—Lands.

Part III.—Municipal and other buildings and street works.

Part IV.—Superannuation.

Part V.—Financial and miscellaneous.

3. The Lands Clauses Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act with the following exception and modification (namely) :— Incorporation of Lands Clauses Acts.

(a) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) is not incorporated with this Act ;

(b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the common seal of the Council and shall be sufficient without the addition of the sureties mentioned in that section.

4. In this Act the several words and expressions to which meanings are assigned by the Acts incorporated herewith have the same respective meanings unless there Interpretation.

A.D. 1931. — be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

“The borough” means the metropolitan borough of Hackney;

“The Council” means the mayor aldermen and councillors of the borough;

“The treasurer” means the treasurer of the borough and includes any person duly authorised to discharge temporarily the duties of his office;

“The Act of 1908” means the Camberwell and other Metropolitan Borough Councils (Superannuation) Act 1908 so far as the same applies to the borough;

“The Act of 1926” means the Hackney Borough Council Act 1926;

“The general rate” means the rate or rates levied and collected in the borough under section 10 of the London Government Act 1899.

PART II.

LANDS.

Power to
acquire
lands.

5. Subject to the provisions of this Act the Council may enter on take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for and in connection with the following purposes:—

- (1) The construction of the street works authorised by this Act and for the provision of space for the erection of buildings adjoining or near to such street works:
- (2) The extension of the town hall and for other the purposes mentioned in the section of this Act of which the marginal note is “Erection of town hall &c.”

Period for
compulsory
purchase of
lands.

6. The powers of the Council for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of five years from the first day of October one thousand nine hundred and thirty-one.

7. The Council may subject to the provisions of this Act enter into and carry into effect agreements with any person being the owner of or interested in any lands houses or property abutting on any portion of the street works or of the lands which the Council may acquire under the powers of this Act with respect to the sale by the Council to such person of any lands or property (including any part of a street or thoroughfare appropriated by or vested in the Council under the powers of this Act and not required for the street works or the other purposes of this Act) for such consideration as may be agreed upon between the Council and such person and the Council may accept as satisfaction of the whole or any part of such consideration the grant by such person of any lands or property required by the Council for the purposes of this Act.

A.D. 1931.

—
Power to
Council to
make agree-
ments with
owners of
property
&c.

8. The Council may enter into and carry into effect agreements and arrangements with the owners of or other persons interested in any lands or buildings which may be acquired under the provisions of this Act or which may be in the neighbourhood of the street works with respect to the re-instatement of any such owners or other persons and with respect to the exchange of lands for that purpose and the Council may pay or receive money for equality of exchange.

Power to
reinstate
owners of
property.

9. The Council on selling any lands may reserve to themselves all or any part of the easements belonging thereto and may make the sale subject to such reservation accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the exercise of noxious trades or the discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit.

Reservation
of ease-
ments &c.

10. In estimating the amount of compensation or purchase money to be paid by the Council in respect of the acquisition under this Act of any part of the lands of any person the enhancement in value of the adjoining lands of such person not so acquired or of any other lands of such person which are continuous with such adjoining lands arising out of the construction of any new street or arising through such adjoining lands becoming lands fronting on any such new or existing street shall be fairly

Benefits to
be set off
against com-
pensation.

A.D. 1931. — estimated and shall be set off against the said compensation or purchase money.

Retention
and disposal
of lands.

11.—(1) Notwithstanding anything in any other Act or Acts or otherwise to the contrary the Council may retain hold and use for such time and for such purposes as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange :

Provided that the Council shall not without the consent of the Minister of Health sell lease exchange or otherwise dispose of any such lands or any interests therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained.

(2) Nothing in this section contained shall release the Council or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Council or any person from or through whom the Council may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in like manner and to the same extent as if this Act had not been passed.

Proceeds of
sale of sur-
plus lands.

12.—(1) So long as any lands remain to be acquired by the Council under the authority of this Act they may so far as they consider necessary apply any capital moneys

received by them on any re-sale or exchange or by leasing in pursuance of the powers of this Act in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied the Council shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act or under any other powers and such application shall be in addition to and not in substitution for any other mode of extinguishment provided by this Act or any other Act under which such loans have been raised except to such extent and upon such terms as may be approved by the Minister of Health.

A.D. 1931.

(2) Provided that—

- (a) the amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by this Act for the purpose of such purchase;
- (b) the borrowing powers conferred by this Act for the purpose of such purchase shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

13. The following provisions of the Act of 1926 shall extend and apply to and for the purposes of this Part of this Act as if those provisions were with any necessary modifications re-enacted in this Act (that is to say):—

Application
of certain
provisions
of Act of
1926 to
lands.

- Section 17 (Persons under disability may grant easements &c.);
- Section 18 (Correction of errors in deposited plans and book of reference);
- Section 19 (As to private rights of way over lands taken compulsorily);
- Section 20 (Power to Council to enter upon property for survey and valuation);
- Section 21 (Costs of arbitration &c. in certain cases);
- Section 22 (Compensation in cases of recently altered buildings);
- Section 23 (Owners may be required to sell parts only of certain lands and buildings):

A.D. 1931.

Provided that—

- (a) the said section 18 of the Act of 1926 shall for the purposes of such application have effect as if the clerk of the London County Council were therein mentioned instead of the clerk of the peace for the county of London;
- (b) the said section 22 of the Act of 1926 shall for the purposes of such application have effect as if the first day of November one thousand nine hundred and thirty were therein mentioned instead of the fifteenth day of November one thousand nine hundred and twenty-five;
- (c) the said section 23 of the Act of 1926 shall apply in respect of the properties numbered 5 and 9 on the deposited plans.

PART III.

MUNICIPAL AND OTHER BUILDINGS AND
STREET WORKS.Erection of
town hall
&c.

14. The Council may—

- (1) upon all or any of the lands in the borough which are numbered 2 to 12 (inclusive) on the deposited plans (except so much thereof as may be required for the construction of the street works authorised by this Act) when they shall have acquired the same and on other lands of which for the time being they may be the owners erect a town hall council chamber municipal offices public halls and other buildings and premises for carrying on the business and the several undertakings of the Council and for other the purposes of section 24 (Public buildings of vestries and district boards) of the London County Council (General Powers) Act 1893 as extended by the Metropolitan Boroughs (Offices) Scheme 1901 (S.R. & O. 1901 No. 663) and may fit up and furnish the same and provide all necessary approaches accesses works and conveniences in connection therewith;

- (2) grant or let with or without charge the use of any part or parts of the said town hall buildings and premises on such terms and conditions as the Council think fit. A.D. 1931.

15. Subject to the provisions of this Act the Council may make and maintain in the lines and according to the levels shown on the deposited plans and sections the street works within the borough hereinafter referred to together with all necessary or proper works and conveniences connected therewith or incidental thereto (that is to say) :— Power to execute street works.

Work No. 1 A new street commencing at a point in Reading Lane 73 yards or thereabouts from its junction with Mare Street and terminating at a point in the eastern arm of Hackney Grove 45 yards or thereabouts from its junction with Mare Street;

Work No. 2 A widening and improvement on the northern side of Reading Lane between points 6 yards and 73 yards respectively from the junction of Reading Lane with Mare Street.

16.—(1) Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans the Council in connection with and for the purposes of this Part of this Act and as part of the works to be executed under the powers of this Part of this Act may execute or do any of the following works or things (namely) :— Power to make subsidiary works.

- (a) Make junctions and communications with any existing streets intersected or interfered with by or contiguous to the works authorised by this Part of this Act and may divert widen or alter the line or alter the level of any existing street for the purpose of connecting the same with such works;
- (b) Execute any works for the protection of any adjoining land or buildings;
- (c) Execute any works and do any things necessary for the strengthening and supporting of any walls of adjoining buildings; and
- (d) Raise lower alter and interfere with any drain sewer channel or gas or water main or pipe or

A.D. 1931.
—

electricity wire or apparatus within the said limits providing a proper substitute before interrupting the flow of sewage in any drain or sewer or of any gas or water in any main or pipe or of electricity or telephonic communication in any wire or apparatus;

and shall make compensation for any damage done by them in the execution of the powers of this section.

(2) The Council shall not raise lower alter or otherwise interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

Stopping up
of Hackney
Grove.

17.—(1) In connection with the street works and acquisition of lands authorised by this Act the Council may stop up the portion of the highway known as Hackney Grove shown on the deposited plans as intended to be stopped up which lies between Reading Lane and a point in line with the northern forecourt wall of the town hall of the Council one hundred and ninety-five feet or thereabouts to the north of Reading Lane and thereupon all rights of way over or along the same shall be extinguished and the Council may appropriate and use the site of the highway stopped up so far as the same is bounded on both sides by lands of the Council.

(2) The Council shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by law with reference to the taking of lands otherwise than by agreement.

Limits of
deviation.

18. In the construction of the street works the Council may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding five feet either upwards or downwards.

Power to
alter steps
pipes areas
&c.

19. Within the limits of deviation shown on the deposited plans the Council may raise sink or otherwise alter the position of any of the steps areas cellars windows and pipes or spouts belonging to any house or building

and may remove all other obstructions so that the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit and the Council shall make reasonable compensation to any person who suffers damage by any such alteration. A.D. 1931.
—

20.—(1) The Council during the execution of the powers of this Part of this Act may break up and also temporarily stop up divert and interfere with any street for the purpose of executing such powers and may for any reasonable time prevent all persons other than those bona fide going to or returning from any house in the street from passing along and using the same. Temporary stoppage of streets.

(2) The Council shall provide reasonable access for foot passengers bona fide going to or returning from any such house.

21. Any paving metalling or material excavated by the Council in the construction of any works authorised by this Part of this Act from any road under their jurisdiction and control shall absolutely vest in and belong to the Council and may be dealt with removed and disposed of by them in such manner as they may think fit. Application of road materials excavated in construction of works.

22. Nothing in this Act shall exempt any buildings structures or works provided or executed under or in pursuance of the provisions thereof from any of the provisions of the London Building Act 1930 or of any Act amending or extending the same or of any byelaws or regulations in force thereunder so far as the same are applicable to any such buildings structures or works. As to London Building Act.

PART IV.

SUPERANNUATION.

23. As from the twenty-ninth day of September one thousand nine hundred and thirty-one (in this Part of this Act referred to as "the appointed day") the Act of 1908 as amended by section 49 (Amendment of Camberwell and other Metropolitan Borough Councils (Superannuation) Act 1908) of the London County Council (General Powers) Act 1929 shall so far as those Acts apply to the borough be read and construed subject to the amendments contained in this Part of this Act. Amendment of Act of 1908 and an amending Act.

A.D. 1931.

—
Superannuation allowances for new entrants.

24. In the case of officers and servants who enter the service of the Council after the appointed day the following provision shall be substituted for section 5 (Scale of superannuation allowances) of the Act of 1908 :—

“ The superannuation allowance to be made to an officer or servant under this Act after ten years’ service shall be as follows :—

(a) An annual sum calculated on the basis of one-eightieth for each year of service of the average annual amount of his salary or wages and emoluments during the five years ending on the quarter day which immediately precedes the day on which he ceases to hold his office or employment with a maximum of forty-eightieths of such average amount; and

(b) A single lump sum (to be charged upon and paid out of the superannuation fund) equal to one-thirtieth of the said average amount multiplied by the number of completed years of his service so however that such lump sum shall in no case exceed one and a half times the said average amount.”

Ascertaining of average wages of servants.

25. For the purposes of the Act of 1908 the section of this Act of which the marginal note is “ Superannuation allowances for new entrants ” and paragraph (b) of the section of this Act of which the marginal note is “ Death of superannuated person Return of contributions ” the superannuation allowance or payment (as the case may be) shall (if a servant of the Council so desires and of such his desire shall give notice in writing to the Council not less than two months before the date on which he ceases to hold his employment) be calculated on the average annual amount of his wages and emoluments during any consecutive five years (ending on the thirty-first day of March) after the thirty-first day of March one thousand nine hundred and twenty-three Provided that if at any time the wages or emoluments of the servant have been reduced on the ground of misconduct such consecutive five years shall not include any period before such reduction.

26. An officer or servant in the service of the Council on the appointed day may within three months thereafter signify in writing to the Council his intention to adopt the provisions of the section of this Act of which the marginal note is "Superannuation allowances for new entrants" and in that event the said provisions shall extend and apply to such officer or servant accordingly instead of the provisions of section 5 (Scale of superannuation allowances) of the Act of 1908 except that the amount of the lump sum payable to him pursuant to this Act and the maximum permissible amount of such lump sum shall be increased by one-half of one per centum in respect of each year of his service or aggregated service completed on the appointed day.

A.D. 1931.

—
Existing officers and servants may elect to adopt new scale of allowances.

27. The percentage amounts to be deducted for the purposes of the Act of 1908 in the case of an officer or servant who enters the service of the Council after the appointed day shall be five per centum of his annual salary or wages and emoluments.

Scale of contributions New entrants.

28. Section 6 (Reckoning service) of the Act of 1908 shall be read and have effect as if the words "or under" and as an officer or servant of any local authority "within the meaning of the Local Loans Act 1875" were inserted therein after the words "Council or not."

Reckoning service.

29.—(1) Section 6 (Reckoning service) as amended by this Act and section 14 (Contributions in respect of previous service) of the Act of 1908 shall not apply to any officer or servant who enters the service of the Council after the appointed day.

Previous service of new entrants.

(2) Where an officer or servant who has previously been employed as an officer or servant of any authority referred to in section 6 (Reckoning service) of the Act of 1908 as amended by this Act enters the service of the Council after the appointed day within six months of leaving the service of any such authority (or within twelve months where he left such service owing to a reduction in staff) he shall (if he pays to the Council a sum to be ascertained in accordance with the rules contained in the schedule to this Act) be entitled to reckon service with any such authority or authorities (in this section referred to as "ranking service") in whole or in part for the purpose of calculating the superannuation

A.D. 1931. — allowance payable to him under the Act of 1908 as amended by this Act in accordance with the amount of the sum so paid and in accordance with such rules and the succeeding provisions of this section.

(3) No service with an authority or authorities shall be reckoned under this section unless the officer or servant transferring to the service of the Council has within three months after the transfer satisfied the Council that he has been in the service of another authority or authorities and no period of such service shall be reckoned under this section which has been or may be aggregated and reckoned for the purpose of superannuation allowances gratuities or compensation for loss of office under any of the Acts referred to in section 6 (Reckoning service) of the Act of 1908 or in respect of his service with any authority or authorities referred to in that section as amended by this Act.

(4) An officer or servant shall if he so desires be entitled to reckon a part only of his ranking service upon payment of a proportionate part of the sum which would be payable under the rules contained in the schedule to this Act if the whole of such service were to be reckoned but in that event the period during which he is to be deemed to have been employed in the service of an authority or authorities referred to in section 6 (Reckoning service) of the Act of 1908 as amended by this Act shall be proportionately reduced.

(5) Any sum payable by an officer or servant under this section may be paid in a lump sum forthwith or by such instalments as may be agreed between him and the Council. Provided that the first instalment shall be not less than one-tenth of the total sum payable and shall be payable within one year from the date of his entering the service of the Council and that the whole of the instalments shall be payable within a period of ten years from that date with compound interest on the amount for the time being unpaid calculated at the rate of four per centum per annum with half-yearly rests as from the date upon which the officer or servant enters the service of the Council.

(6) For the purpose of calculating the amount which may be or is required to be paid by way of return of contributions to or in respect of an officer or servant under section 7 (Forfeiture for fraud &c.) of the Act of

1908 or under the sections of this Act of which the marginal notes are— A.D. 1931.

“Return of contributions and power to grant gratuities in certain cases”; and

“Death of superannuated person Return of contributions”

the whole of the sum paid by him under this section (or if the amount is payable by instalments under subsection (5) of this section the amount of the instalments and interest paid by the officer or servant to the date of the determination of the appointment or his death as the case may be) shall be treated as contributions which have been paid by him to the superannuation fund of the Council.

(7) If any instalment of the sum payable by an officer or servant under this section remains to be paid at the date on which the officer or servant becomes entitled to a superannuation allowance the amount of every such instalment shall with accrued interest be deducted from the payment or payments of superannuation allowance made next after the instalment has become due until the whole sum payable has been recovered but the total amount of the remaining instalments or any part thereof may if the Council so decide be deducted from the lump sum payable under the section of this Act of which the marginal note is “Superannuation allowances for new entrants.”

(8) If any instalment of the sum payable by an officer or servant under this section remains to be paid at the date on which he dies before becoming entitled to a superannuation allowance the amount of every such instalment shall with accrued interest be deducted from any payment due to his legal personal representatives under the proviso to paragraph (c) of subsection (1) of the next succeeding section of this Act but not so as to reduce the amount payable below the sum which would have been payable if that proviso had not been enacted.

(9) Upon and after the date of the coming into operation of any general Act of Parliament requiring the payment of transfer values or sums in lieu of transfer values to the Council in respect of the ranking service of an officer or servant with an authority to whom the Local Government and other Officers’ Superannuation

A.D. 1931. — Act 1922 or any amendment thereof applies or to whose officers and servants a scheme for the granting of superannuation allowances under a local Act or Order applies this section (except subsection (1) hereof) shall not apply to any such officer or servant who enters the service of the Council on or after such date.

Return of
contribu-
tions and
power to
grant gratu-
ities in cer-
tain cases.

30.—(1) An officer or servant who has not become entitled to a superannuation allowance or (in case of death) his legal personal representatives shall be entitled to receive out of the superannuation fund a sum equal to the aggregate amount of his contributions under the Act of 1908 or the Act of 1908 as amended by this Act as the case may be together with compound interest at the rate of three per centum per annum calculated as hereinafter provided to the thirty-first day of March immediately preceding the date of the determination of the appointment—

- (a) if he loses his office or employment by reason of a reduction of staff or of any alteration of areas or boundaries or ceases to hold his office or employment by reason of bodily injury not occasioned by his own default;
- (b) if he is dismissed or resigns or otherwise ceases to hold his office or employment Provided that such dismissal resignation or cesser is not in consequence of an offence of a fraudulent character or of grave misconduct; or
- (c) if he dies Provided that in any case where a deceased officer or servant shall have completed five years' service with the Council and the sum payable to his legal personal representatives under the preceding provisions of this section is less than the average annual amount of salary and wages or emoluments of such officer or servant during the five years ending on the quarter day immediately preceding the date of his death the Council shall also pay to his legal personal representatives the amount by which the contributions with compound interest is less than the said average annual amount.

(2) In any such case of loss of office or employment as is mentioned in paragraphs (a) and (b) of subsection (1) of this section the Council may also if they see fit grant to an officer or servant a gratuity not exceeding twice the

amount of his salary or wages and emoluments during the year ending on the quarter day which immediately precedes the day on which he ceases to hold his office or employment but every such gratuity shall be paid out of the general rate and not out of the superannuation fund Provided that when such loss of office or employment occurs in a case in which the death resignation or insanity of one of the holders of a joint appointment affects the office of the other the officer or servant whose office or employment is vacated shall unless he is re-appointed by the Council and except where in the case of husband and wife the joint appointment is terminated owing to the grave misconduct of one of them be entitled to receive during life a superannuation allowance according to the scale provided by the Act of 1908 or by the Act of 1908 as amended by this Act if such officer or servant has attained the age of fifty years or has served for not less than twenty years.

A.D. 1931.
—

(3) The payments to be made by the Council to servants of the Council under this section shall be in addition to and not in substitution for the sick pay and death allowances referred to in section 24 (Confirmation of sick pay (Hackney)) of and the Second Schedule to the Act of 1908.

31. In any case in which an officer or servant dies after he has become entitled to a superannuation allowance and before he has received by way of superannuation allowance (together with any single lump sum which may be paid to him under the section of this Act of which the marginal note is "Superannuation allowances for new entrants" in cases in which that section applies) an amount equal in the aggregate to—

Death of
superannu-
ated person
Return of
contribu-
tions.

- (a) the amount of his contributions under the Act of 1908 or under the Act of 1908 as amended by this Act together with compound interest at the rate of three per centum per annum calculated as hereinafter provided to the thirty-first day of March immediately preceding the date of his retirement; or
- (b) the average annual amount of his salary or wages and emoluments during the five years ending on the quarter day immediately preceding the day on which he ceased to hold his office or employment;

A.D. 1931. — (whichever is the greater) the Council shall pay to his legal personal representatives out of the superannuation fund the amount by which the amount of the said contributions and interest or the said average annual amount (as the case may be) exceeds the aggregate amount which he has received by way of superannuation allowance and single lump sum as aforesaid.

Ascertain-
ment of
compound
interest.

32. For the purposes of the two last preceding sections of this Act the compound interest shall be calculated with yearly rests on the thirty-first day of March in each year and the amount on which such interest shall be calculated on each such day shall be the aggregate of the total amount of the contributions standing to the credit of the officer or servant on the thirty-first day of March in the preceding year and the amount of compound interest calculated to such last-mentioned date.

Notice of
proposal to
return con-
tributions
or pay
gratuity.

33. Special notice in writing shall be given with the ordinary agenda paper to every member of the Council of the time at which there will be considered any proposal to return contributions under section 7 (Forfeiture for fraud &c.) of the Act of 1908 or any proposal to grant a gratuity under subsection (2) of the section of this Act of which the marginal note is "Return of contributions and power to grant gratuities in certain cases."

Increase of
allowance in
special
cases.

34. The Council may on the retirement from service of any officer or servant possessing professional or other peculiar qualifications not ordinarily to be acquired in such service and of special value therein by special resolution direct that such number of years (not exceeding ten) as the Council shall by such resolution specify be added to the actual number of years of service or aggregate service of such officer or servant for the purpose of calculating his superannuation allowance under the Act of 1908 or under the Act of 1908 as amended by this Act.

Superannu-
ation fund.

35.—(1) Section 15 (Superannuation fund) of the Act of 1908 shall continue in operation until the thirty-first day of March one thousand nine hundred and thirty-four but as from the appointed day the Council shall pay into the fund in each year a sum equal in amount to the sum which during such year has been contributed to the superannuation fund by officers and servants who enter the service of the Council after the appointed day under

the section of this Act of which the marginal note is "Scale of contributions New entrants" in addition to the sums mentioned in section 15 of the Act of 1908. A.D. 1931.
—

(2) As from the thirty-first day of March one thousand nine hundred and thirty-four section 15 (Superannuation fund) of the Act of 1908 shall be repealed and the superannuation fund of the Council shall be administered in accordance with the succeeding provisions of this section.

(3) The Council shall in each year carry and credit to the superannuation fund—

- (a) the amounts deducted in such year under the provisions of the Act of 1908 as amended by this Act from the salaries and wages of the officers and servants contributing to the superannuation fund;
- (b) a sum equal in amount to the sum which during such year has been contributed to the superannuation fund by officers and servants who enter the service of the Council after the appointed day (in this Act referred to as "the equivalent contributions") and such further sums if any as the Council may become liable to carry and contribute thereto under the provisions of this Act;
- (c) all dividends and interest arising in such year out of the investment or use of the superannuation fund or any part thereof;
- (d) the amount of any payments made to the Council under the section of this Act of which the marginal note is "Previous service of new entrants" or under any general Act of Parliament requiring the payment of transfer values or sums in lieu of transfer values to the Council; and
- (e) such amount as may be certified by an actuary as soon as may be after the thirty-first day of March one thousand nine hundred and thirty-four as necessary in order that the superannuation fund may be solvent such sum to be calculated so far as it relates to the liability to the fund in respect of officers and servants

A.D. 1931.
—

who entered the service of the Council before the appointed day so as to cast upon the Council so far as may be an equal annual charge for a period not exceeding forty years from the first day of April one thousand nine hundred and twenty-nine.

(4) The equivalent contributions and payments to be made under paragraph (e) of subsection (3) of this section shall be made out of the same funds rates and revenues as those upon which the salaries or wages from which the amounts deducted under paragraph (a) of that subsection are charged.

Actuarial
investiga-
tion.

36.—(1) As soon as may be after the thirty-first day of March one thousand nine hundred and thirty-four and at the expiration of every subsequent period of five years the condition of the superannuation fund shall be submitted by the Council to an actuary being a Fellow of the Institute of Actuaries or of the Faculty of Actuaries in Scotland appointed by them who shall consider the same and shall make an actuarial valuation of the assets and liabilities of the superannuation fund and on the basis of such valuation shall certify what sum (if any) calculated so as to cast upon the Council an equal annual charge for a period not exceeding forty years from the date of the valuation in addition to the equivalent contributions and payments to be made by the Council under paragraph (e) of subsection (3) of the last preceding section of this Act should in his opinion be contributed by the Council in order that the superannuation fund may be solvent and for the then ensuing quinquennial period the sum so certified shall be contributed by the Council to the superannuation fund accordingly.

(2) Where on such valuation the actuary certifies that a disposable surplus is disclosed the Council shall dispose of the surplus by decreasing to such extent as shall be certified by the actuary to be possible without risk of causing a deficit in the fund the equivalent contributions or any other sums which the Council may have become liable to contribute to the fund under the provisions of this Act including the payments to be made under paragraph (e) of subsection (3) of the last preceding section of this Act. Provided that the disposable surplus shall be applied in the first instance to the reduction of any sums other than the equivalent

contributions of the Council and that the balance of the disposable surplus (if any) or the disposable surplus if no such other sums are then payable shall be applied to the reduction of the equivalent contributions of the Council for a period of forty years from the date of the valuation or such less period as in the opinion of the actuary is reasonable having regard to the amount of the disposable surplus. A.D. 1931.

(3) Section 16 (Actuarial investigation) of the Act of 1908 is hereby repealed as from the thirty-first day of March one thousand nine hundred and thirty-four.

37. The expression "superannuation allowance" shall for the purposes of the following sections of this Act be deemed to include an annual allowance made by the Council to an officer or servant under section 49 (Amendment of Camberwell and other Metropolitan Borough Councils (Superannuation) Act 1908) of the London County Council (General Powers) Act 1929 (that is to say):— Annual allowances to employees in cases under Workmen's Compensation Act 1925.

"Previous service of new entrants";

"Return of contributions and power to grant gratuities in certain cases"; and

"Death of superannuated person Return of contributions."

38. As from the appointed day section 65 (Alteration of amounts payable out of superannuation fund in case of death) of the Act of 1926 is hereby repealed and the following sections of the Act of 1908 so far as they apply to the borough are hereby repealed to the extent mentioned hereunder:— Repeal.

Section 7 (Forfeiture for fraud &c.) The words "or who voluntarily resigns his office or employment."

Section 8 (Return of contributions and power to grant gratuities and superannuation allowances in certain cases) The whole section.

Section 9 (Return of contributions in case of death) The whole section.

Section 10 (Notice of proposal to return contributions or grant gratuity) The whole section.

A.D. 1931.

PART V.

FINANCIAL AND MISCELLANEOUS.

Power to
borrow.

39.—(1) The Council may from time to time independently of any other borrowing power and without any authority other than this Act borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all moneys so borrowed within the respective periods mentioned in the third column thereof (namely):—

1	2	3
Purpose.	Amount.	Period for repayment.
(a) The purchase of lands under the powers of this Act.	£ 49,700	Sixty years from the date or dates of borrowing.
(b) The construction of the street works authorised by this Act.	5,400	Thirty years from the date or dates of borrowing.
(c) For the construction of the town hall and other buildings by this Act authorised.	100,500	Forty years from the date or dates of borrowing.
(d) The payment of the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) The Council with the consent of the London County Council (subject to appeal in accordance with subsection (1) of section 4 of the London Government Act 1899) may also borrow from time to time such further money as may be necessary for the foregoing or any of the other purposes of this Act.

(3) In order to secure the repayment of the moneys borrowed under this section and the payment of interest thereon the Council may mortgage or charge the general fund and general rate.

(4) The Council shall pay off all moneys borrowed by them under subsection (2) of this section within such period as the London County Council may sanction.

40. If any money is payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Council.

A.D. 1931.

Receipt in
case of per-
sons not
sui juris.

41. Where more persons than one are registered as joint holders of any mortgage of the Council any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Council or the treasurer by any other of them.

Interest on
mortgages
held jointly.

42.—(1) By virtue of this Act the disused church tower shown on the deposited plans (in this section referred to as "the tower") shall be transferred to and shall vest in the Council on the first day of July one thousand nine hundred and thirty-one for preservation as an ancient monument.

Mainten-
ance of
Hackney
Old Church
tower.

(2) After the said date the Council shall maintain the tower and shall do any act or thing which may be required for the purpose of repairing it or protecting it from decay or injury. Provided that the plans and specifications of all works other than those of immediate necessity to be undertaken by the Council shall be submitted to the Ancient Monuments Board and the board if they object to any plans or specifications shall report the matter to the Commissioners of Works whose decision shall be final.

(3) The public shall not have access to the tower except to such extent and at such times (if any) as the Council may from time to time approve.

(4) Any expenses incurred by the Council under this section shall be defrayed out of the general rate.

43. Subject to the provisions of this Act the following provisions of the Act of 1926 shall apply for the purposes of this Act as if the same were with any necessary modifications re-enacted herein (that is to say):—

Application
of provisions
of Act of
1926.

Section 57 (Application of money borrowed);

Section 58 (Provisions of Metropolis Manage-
ment Act 1855 as to mortgages
to apply);

Section 59 (Protection of lender from inquiry);

Section 60 (Expenses of execution of Act);

Section 61 (Council not to regard trusts);

A.D. 1931.

- Section 62 (Mode of payment off of money borrowed);
- Section 63 (Return to Minister of Health with respect to repayment of debt);
- Section 69 (Application of penalties);
- Section 72 (Protection of Council and their officers from personal liability);
- Section 78 (Recovery of demands);
- Section 79 (Recovery of penalties &c.);
- Section 80 (Saving for indictments &c.);
- Section 81 (Informations by whom to be laid);
- Section 82 (Judges not disqualified);
- Section 83 (Inquiries by Minister of Health);
- Section 86 (Powers of Act cumulative).

Crown
rights.

44. Nothing in this Act shall affect prejudicially any estate right power privilege or exemption of the Crown and nothing in this Act shall authorise the use of or interference with any land belonging to His Majesty in right of His Crown or to any Government department or to any territorial army association without the consent of His Majesty or the Government department or territorial army association as the case may be.

Costs of
Act.

45. All costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act including the costs charges and expenses preliminary to and of and incidental to the compliance with the provisions of the Borough Funds Acts 1872 and 1903 as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of moneys to be borrowed by the Council under this Act but may in the first instance be paid by the Council out of the general rate and moneys so paid shall be recouped by and charged to the moneys to be borrowed under this Act.

The SCHEDULE referred to in the
foregoing Act.

A.D. 1931.
—

**RULES DETERMINING THE SUMS TO BE PAID TO THE
SUPERANNUATION FUND BY NEWLY APPOINTED
EMPLOYEES IN RESPECT OF PREVIOUS SERVICE.**

1. The amount shown in column 2 of the succeeding table as appropriate to the employee's age at the date of transfer to be multiplied by the number of completed years of the employee's service with an authority or authorities referred to in section 6 (Reckoning service) of the Act of 1908 as amended by this Act.

2. The corresponding amount in column 3 of the table to be multiplied by the number of completed months (in excess of completed years) of the employee's service as aforesaid.

3. The sum of these two products shall be the sum payable for each £100 of salary or wages and the actual sum payable by the employee shall be calculated proportionately by reference to his salary or wages at the date of entering the service of the Council.

4. In the case of an employee who at the date of his transfer to the service of the Council is employed in whole-time service a period of part-time service shall be treated for the purposes of these rules as though it were whole-time service for a proportionately reduced period.

A.D. 1931.

THE TABLE ABOVE REFERRED TO.

Age at date of transfer. (1)	Amount for each £100 of salary or wages in respect of each completed period of previous service.	
	Year. (2)	Month. (3)
	£ s.	£ s.
Under age 25 - - -	8 5	14
25 and under 30 - - -	8 10	14
30 " " 35 - - -	8 15	15
35 " " 40 - - -	9 0	15
40 " " 41 - - -	9 5	15
41 " " 42 - - -	9 5	15
42 " " 43 - - -	9 10	16
43 " " 44 - - -	9 10	16
44 " " 45 - - -	9 15	16
45 " " 46 - - -	10 0	17
46 " " 47 - - -	10 5	17
47 " " 48 - - -	10 10	18
48 " " 49 - - -	10 15	18
49 " " 50 - - -	11 0	18
50 " " 51 - - -	11 5	19
51 " " 52 - - -	11 10	19
52 " " 53 - - -	11 15	1 0
53 " " 54 - - -	12 0	1 0
54 " " 55 - - -	12 5	1 0

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

WILLIAM RICHARD CODLING, Esq., C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses :
 Adastral House, Kingsway, London, W.C.2; 120, George Street, Edinburgh;
 York Street, Manchester; 1, St. Andrew's Crescent, Cardiff;
 15, Donegall Square West, Belfast;
 or through any Bookseller.